

	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	E-Special Households (FITAP and SNAP)
	Section No./Name	E-200-FITAP-SNAP Special Households (FITAP and SNAP)
	Document No./Name	E-240-SNAP Fleeing Felons and Probation and Parole Violations
	Effective Date	August 1, 2016

I. STATEMENT OF POLICY

AN INDIVIDUAL DETERMINED TO BE A FLEEING FELON OR PROBATION OR PAROLE VIOLATOR IS INELIGIBLE TO RECEIVE SNAP BENEFITS. DCFS HAS THE PRIMARY RESPONSIBILITY FOR VERIFYING AN INDIVIDUAL'S FLEEING FELON AND PROBATION AND PAROLE VIOLATOR STATUS.

E-241-SNAP FLEEING FELON

DCFS MAY ESTABLISH THAT AN INDIVIDUAL IS A FLEEING FELON WHEN A FEDERAL, STATE, OR LOCAL LAW ENFORCEMENT OFFICER ACTING IN HIS OFFICIAL CAPACITY PRESENTS AN OUTSTANDING FELONY ARREST WARRANT TO DCFS TO OBTAIN INFORMATION ON THE LOCATION OF AND OTHER INFORMATION ABOUT THE INDIVIDUAL NAMED IN THE WARRANT. THE FELONY ARREST WARRANT MUST CONFORM TO ONE OF THE FOLLOWING NATIONAL CRIME INFORMATION CENTER UNIFORM OFFENSE CLASSIFICATION CODES:

- ESCAPE (4901),
- FLIGHT TO AVOID (PROSECUTION, CONFINEMENT, ETC.) (4902), OR
- FLIGHT-ESCAPE (4999).

REFER TO CHAPTER 7, [E-510](#) FOR INFORMATION THAT CAN BE RELEASED TO LAW ENFORCEMENT PERSONNEL.

E-242-SNAP PROBATION OR PAROLE VIOLATOR

TO BE CONSIDERED A PROBATION OR PAROLE VIOLATOR, FEDERAL, STATE, OR LOCAL LAW ENFORCEMENT MUST DETERMINE THAT THE INDIVIDUAL VIOLATED A CONDITION OF HIS OR HER PROBATION OR PAROLE IMPOSED UNDER FEDERAL OR STATE LAW, AND ARE ACTIVELY SEEKING THE INDIVIDUAL TO ENFORCE THE CONDITIONS OF THE PROBATION OR PAROLE AS OUTLINED BELOW.

FEDERAL, STATE, OR LOCAL LAW ENFORCEMENT AUTHORITIES ARE ACTIVELY SEEKING AN INDIVIDUAL WHEN THE LAW ENFORCEMENT AGENCY:

- INFORMS DCFS THAT IT INTENDS TO ARREST AN INDIVIDUAL FOR A PROBATION OR PAROLE VIOLATION WITHIN 20 DAYS OF SUBMITTING A REQUEST FOR INFORMATION ABOUT THE INDIVIDUAL TO DCFS;
- PRESENTS A FELONY ARREST WARRANT TO DCFS; OR

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- INTENDS TO ARREST AN INDIVIDUAL FOR A PROBATION OR PAROLE VIOLATION WITHIN 30 DAYS OF THE DATE OF A REQUEST FROM DCFS ABOUT A SPECIFIC PROBATION OR PAROLE VIOLATION.

APPLICATION PROCESSING SHOULD NOT BE DELAYED BEYOND NORMAL PROCESSING TIME STANDARDS (including expedited applications), IF AWAITING VERIFICATION FROM THE LAW ENFORCEMENT AGENCY TO DETERMINE THE STATUS OF THE PROBATION OR PAROLE VIOLATOR. Refer to Chapter 4, [C-600-SNAP](#).

II. PROCEDURES

IF AN INDIVIDUAL HAS BEEN DETERMINED TO BE A FLEEING FELON OR A PROBATION OR PAROLE VIOLATOR, THE INDIVIDUAL IS INELIGIBLE TO RECEIVE SNAP BENEFITS. IF THE FLEEING FELON OR A PROBATION OR PAROLE VIOLATOR IS A MEMBER OF THE HOUSEHOLD, THE WORKER MUST TAKE ACTION TO REMOVE THE MEMBER EVEN IF THIS RESULTS IN A DECREASE IN BENEFITS.

IF AN APPLICANT REPORTS THAT A MEMBER OF THE HOUSEHOLD IS A PROBATION OR PAROLE VIOLATOR, CONTACT THE LAW ENFORCEMENT AGENCY AND ALLOW THE LAW ENFORCEMENT AGENCY 20 DAYS TO RESPOND TO A REQUEST FOR INFORMATION ABOUT THE CONDITIONS THE PROBATION OR PAROLE VIOLATION, AND WHETHER THE LAW ENFORCEMENT AGENCY INTENDS TO ACTIVELY PURSUE THE INDIVIDUAL.

- IF THE LAW ENFORCEMENT AGENCY DOES NOT INDICATE THAT IT INTENDS TO ARREST THE INDIVIDUAL FOR THE PROBATION OR PAROLE VIOLATION WITHIN 30 DAYS OF THE REQUEST FOR VERIFICATION, THE WORKER SHALL DETERMINE THAT THE INDIVIDUAL IS NOT CONSIDERED A PROBATION OR PAROLE VIOLATOR AND DOCUMENT THIS DETERMINATION WITH A CASE NOTE.
- IF THE LAW ENFORCEMENT AGENCY INDICATES THAT IT DOES INTEND TO ARREST THE INDIVIDUAL FOR THE PROBATION OR PAROLE VIOLATION WITHIN 30 DAYS OF REQUEST FOR VERIFICATION DO NOT TAKE ANY ACTION ON THE CASE UNTIL THE 30-DAY PERIOD HAS EXPIRED. ONCE THE 30-DAY PERIOD HAS EXPIRED, THE WORKER SHALL VERIFY WITH THE LAW ENFORCEMENT AGENCY WHETHER IT HAS ATTEMPTED TO ARREST THE PROBATION OR PAROLE VIOLATOR.
 - IF THE LAW ENFORCEMENT AGENCY HAS ATTEMPTED TO ARREST THE PROBATION AND PAROLE VIOLATOR, DENY THE APPLICATION IF THE MEMBER IS THE ONLY MEMBER IN THE HOUSEHOLD. IF THE PROBATION OR PAROLE VIOLATOR IS A MEMBER OF THE HOUSEHOLD, REMOVE THE MEMBER FROM THE

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CASE BY EXCLUDING THE INDIVIDUAL USING INCLUSION/EXCLUSION CODE AND REASON 02/05.

- IF THE LAW ENFORCEMENT AGENCY HAS NOT TAKEN ANY ACTION WITHIN 30 DAYS, THE INDIVIDUAL IS NOT CONSIDERED A PROBATION OR PAROLE VIOLATOR. DOCUMENT WITH A CASE NOTE. NO FURTHER ACTION IS REQUIRED.

IF DCFS RECEIVES VERIFICATION THAT AN INDIVIDUAL IS A FLEEING FELON, EXCLUDE THE INDIVIDUAL USING INCLUSION/EXCLUSION CODE AND REASON 02/05.

III. FORMS AND INSTRUCTIONS

THERE ARE NO FORMS ASSOCIATED WITH THIS POLICY.

IV. REFERENCES

[7 CFR 273.11](#)